



BBNJ Negotiations State of play

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1. Informal discussions: highlights
2. State positions to date
3. Key issues



1. Informal discussions: highlights

Timeline



- **2004** – Formation of the BBNJ Working Group
 - ('Ad Hoc Open-ended Informal Working Group to study issues relating to the conservation and sustainable use of marine biological diversity beyond areas of national jurisdiction')
- **2011** – Agreement of the 'Package Deal'
- **2012** – Rio+20 commitment
- **2014-2015** – Working Group meetings
- **2016-2017** – Preparatory Committee
- **September 2018** – Start of formal negotiations
- **2018-2020** – Intergovernmental Conference (4 x 2-week sessions)

Informal discussions



Creation of the BBNJ Working Group in 2004; meetings from 2006

Emergence of key differences in interests of States:

- New treaty vs improved implementation
- Common Heritage of Mankind vs high seas freedoms
- Conservation vs MGRs & capacity building

The 2011 'Package Deal'



1. Marine genetic resources, including questions on the sharing of benefits
2. Measures such as area-based management tools, including marine protected areas
3. Environmental impact assessments
4. Capacity building and the transfer of marine technology.

Rio+20 (2012)



“To address, on an urgent basis, the issue of the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, **including by taking a decision on the development of an international instrument under the Convention on the Law of the Sea before the end of the 69th session of the General Assembly**”



The BBNJ Working Group post-Rio



States to decide by September 2015 whether or not to open negotiations for a new international agreement

3 meetings of the BBNJ Working Group, specifically convened to discuss “the scope, parameters and feasibility of an international instrument under UNCLOS”



BBNJ Working Group meeting, June 2014



- A strong 'coalition of the willing' developing
 - But a number of States impeding consensus
- Progressive involvement of developing states
 - Pacific nations
 - CARICOM
 - African Union
- Inclusion of civil society



- First session: Unpacking the package
 - “Breakthrough” on MGRs
- Sessions 2 & 3: Delving into details
 - “specific language proposals” -> “treaty language”
 - “parking”
 - streamlined Chair’s non-paper
- Session 4: Toward formal negotiations
- Resolution 72/249
 - Co-sponsored by 141 States



2. State positions to date

State positions to date



- **Advocates**

Advancing the negotiations for a new instrument

- EU; G77/China and Mexico; African, Caribbean, Pacific States

- **Facilitators**

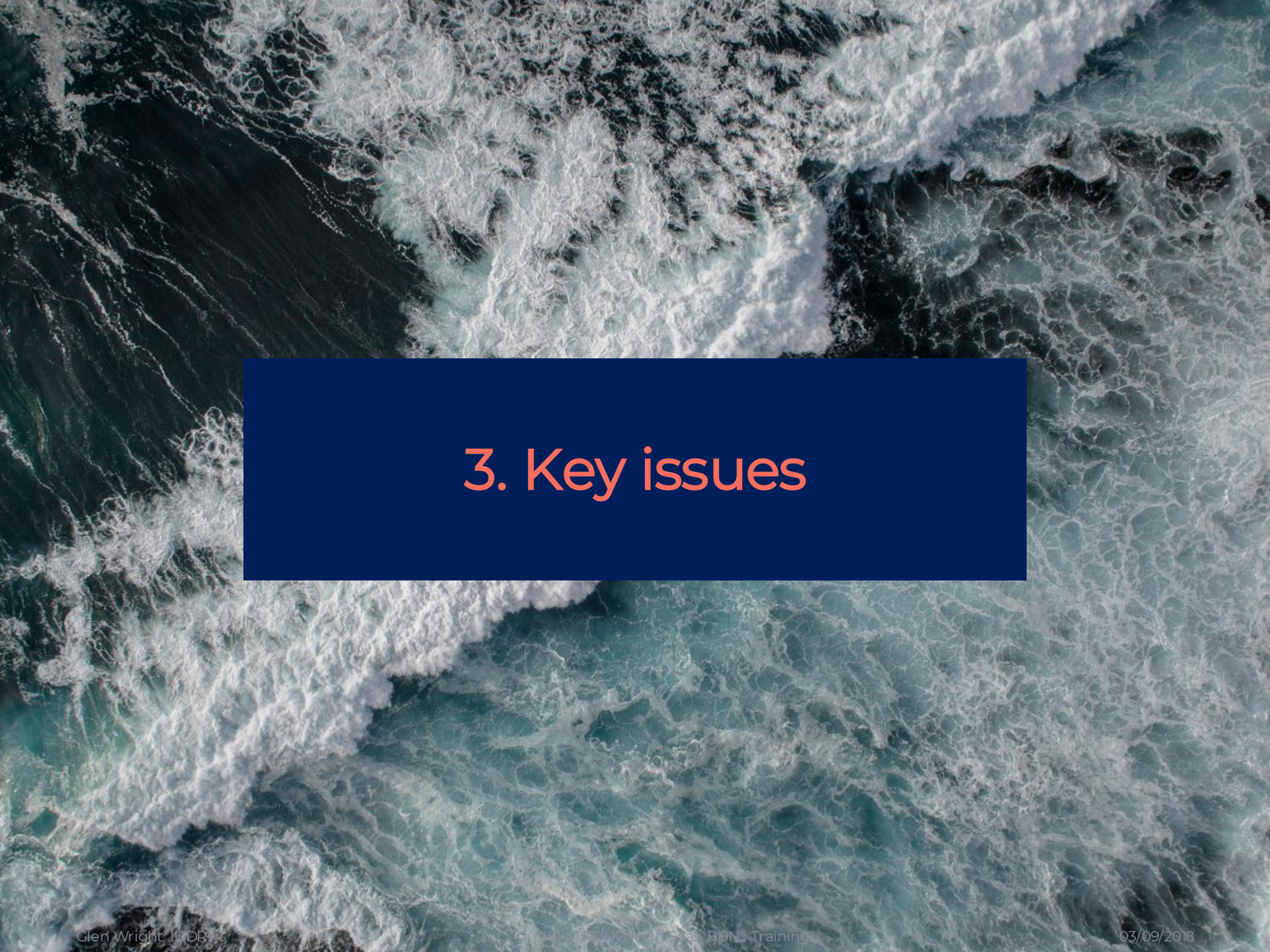
Seeking the middle ground and mediating compromise

- Australia & New Zealand; Canada; Norway

- **Reluctant** to negotiate a new agreement

Active and influential participants

- US; Japan; Iceland; South Korea; Russia



3. Key issues

Key issues – Package Deal elements



MGRs

- Legal status
- The complexity of biodiscovery
- The form of benefit sharing

Capacity building

- Coordinating and catalysing capacity building efforts
- Voluntary or compulsory
- Modalities for sharing of data and technology

Key issues – Package Deal elements



ABMTs

- Establishing an effective mechanism
- Types, objectives and duration
- Relationship with existing instruments and bodies

EIA

- The scope of an EIA process
- Responsibility for assessments
- The effect of an EIA

Key issues - overarching elements



- Institutional structure
- Monitoring and review
- "Not undermining"
- Fisheries
- Monitoring, control and surveillance (MCS)
- Adjacency and compatibility
- Funding

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STUDY

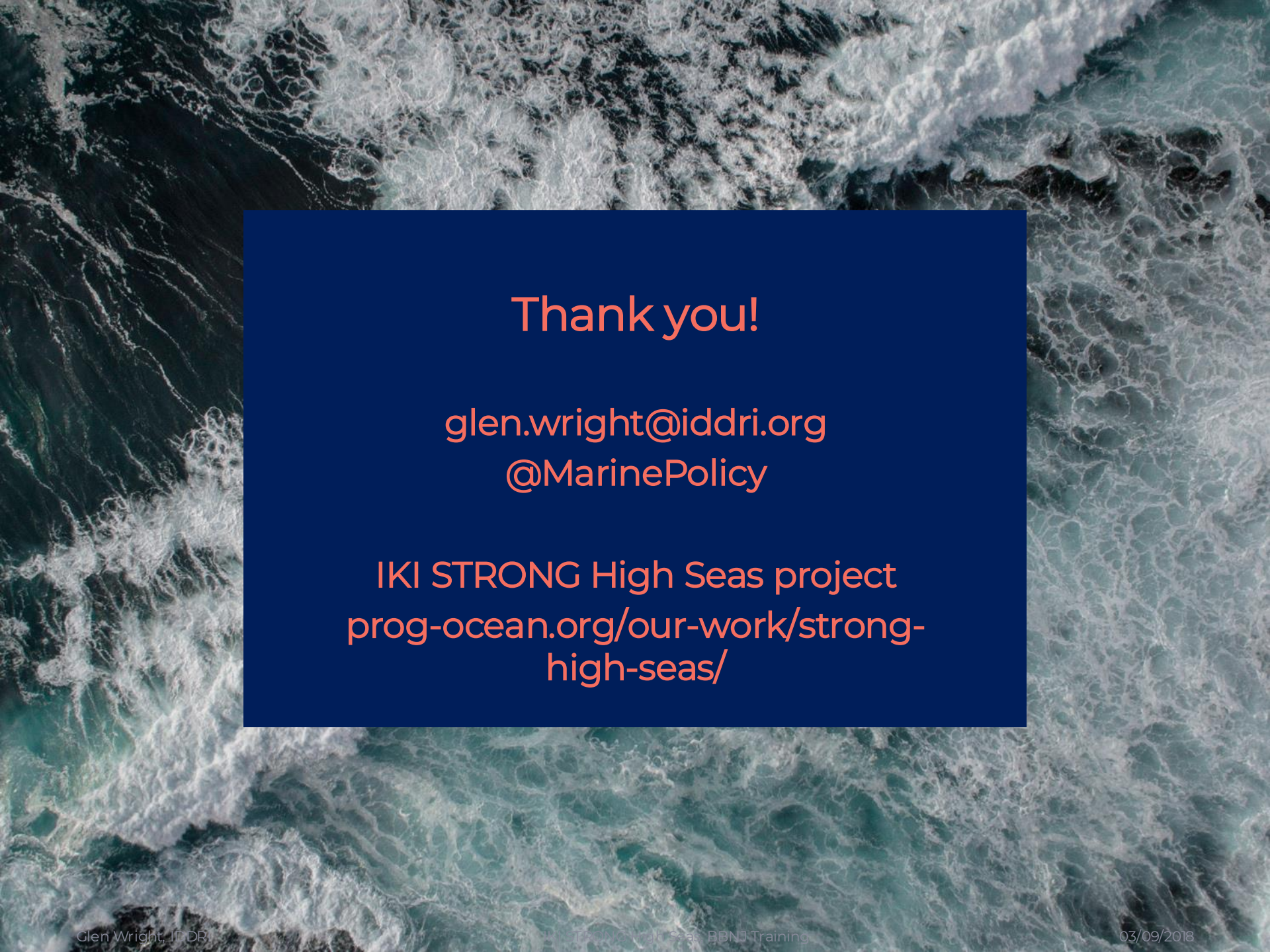
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The long and winding road: negotiating a treaty for the conservation and sustainable use of marine biodiversity in areas beyond national jurisdiction

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Forewords by Laurence Tubiana and Eden Charles

Report available to download here: <http://bit.ly/2LQR2B6>



Thank you!

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IKI STRONG High Seas project
prog-ocean.org/our-work/strong-high-seas/